

EXPLAINING INDIA'S VIEWPOINT
A file photo of National Security Advisor Ajit Doval with his American counterpart Jake Sullivan

YADAV IS OUT ON BAIL IN A KIDNAPPING CASE FILED BY DELHI POLICE, WHICH MAY DELAY HIS EXTRADITION TO THE US. INDIA IS ALSO POINTING TO ITS 61 EXTRADITION REQUESTS STILL PENDING WITH THE US

indictment states, took place on June 3, 2023, serving as proof of the plot to kill Pannun. It puts down evidence to show that speaking from New Delhi on an audio call, Gupta allegedly urged CS to ask his associate to expedite the assassination. "Finish him, brother, finish him. Don't take too much time... push these guys...finish the job." Asks a former head of the Defence Intelligence Agency (DIA): "Who speaks on the phone while giving out such directions, when you want to carry it out in the US, which leads the Five Eyes Alliance?" The Five Eye (FVEY) nations—Australia, Canada, New Zealand, the UK and the US—are known for their extensive surveillance capabilities, particularly in monitoring internet communications. Intelligence sources believe these countries are observing nearly all online chatter. The secretive nature of their spying was famously exposed by whistleblower Edward Snowden in 2013. In contrast, Osama bin Laden managed to evade detection for years by avoiding phones and internet connections and relying on couriers to communicate with al Qaeda.

Extradition Wrangles

The logical next step—an attempt by the US to extradite Yadav—may be delayed, as he faces trial in India for crimes that carry long years of imprisonment. Many in India are also indignant about the US request, pointing to the 61 extradition requests from India over the past two decades pending with the US, among them the two key accused in the 26/11 Mumbai terror attacks—US citizen David Headley and Canadian-Pakistani citizen Tahawwur Rana. "It's not to suggest that there should be a quid pro quo but to point out that adopting a holier-than-thou attitude is infantile," an intelligence community officer posted on X. In response to this, the former DIA officer points out: "The US has strong laws to protect individual rights. And it may bring stronger evidence against Indian officials, including from the very top, embarrassing the government."

Unfortunately for India, the controversy has arisen at a time when intelligence cooperation between India and the US has been gathering momentum. The US, for instance, shared intelligence related to Chinese troop movement near the Line of Actual Control (LAC) after the Galwan clash in May-June 2020. This episode, says Harsh Pant, vice president, studies, Observer Research Foundation, can revive "older debates in the US and India as to how trustworthy India can be, and vice versa, as a partner".

Also, as Frank O' Donnel, a non-resident fellow in the Stimson Center South Asia programme, tells INDIA TODAY, while India's differential treatment of Ottawa and Washington may not impact US-India intelligence-sharing, "failing to extend this to other US allies could complicate future US-led efforts to integrate India into more sensitive bilateral and global intelligence networks. After all, these networks rely upon inputs from the same allies, underpinned by a US belief in the indivisibility of their security." India could well find itself outside the charmed circle then. ■

